

# THE INFORMATION TECHNOLOGY ACT, 2000

(ACT NO. 21 OF 2000)

An Act to provide legal recognition for transactions carried out by means of electronic data interchange and other means of electronic communication, commonly referred to as "electronic commerce", which involve the use of alternatives to paper-based methods of communication and storage of information, to facilitate electronic filing of documents with the Government agencies and further to amend the Indian Penal Code, the Indian Evidence Act, 1872, the Bankers' Books Evidence Act, 1891 and the Reserve Bank of India Act, 1934 and for matters connected therewith or incidental thereto.

## CHAPTER I — PRELIMINARY

### 1. Short title, extent, commencement and application.

- (1) This Act may be called the Information Technology Act, 2000.
- (2) It shall extend to the whole of India.
- (3) It shall come into force on such date as the Central Government may appoint.

### 2. Definitions.

- (1) In this Act, unless the context otherwise requires,—
  - (a) "access" with its grammatical variations and cognate expressions means gaining entry into, instructing or communicating with the logical, arithmetical, or memory function resources of a computer, computer system or computer network;
  - (b) "addressee" means a person who is intended by the originator to receive the electronic record but does not include any intermediary;

## CHAPTER II — DIGITAL SIGNATURE

### 3. Authentication of electronic records.

- (1) Subject to the provisions of this section any subscriber may authenticate an electronic record by affixing his digital signature.
- (2) The authentication of the electronic record shall be effected by the use of asymmetric crypto system and hash function which envelop and transform the initial electronic record into another electronic record.